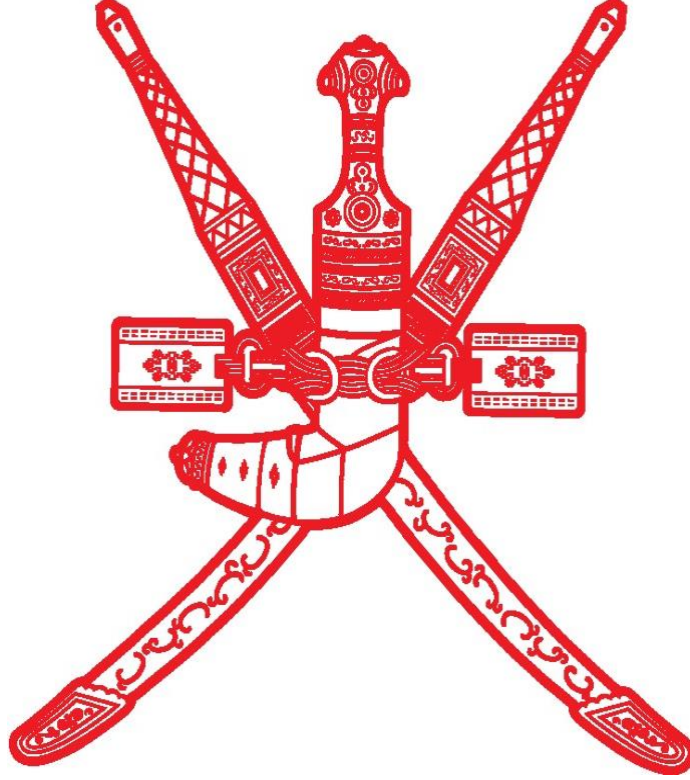


سلطنة عمان

وزارة الإسكان والتخطيط العمراني



**E-Tender for
UNIFIED PORTAL**

E-Tender Reference No: XXXX/YYYY/2024-03/01

**Head Office:
MINISTRY OF HOUSING AND URBAN PLANNING
P.O. Box 173, PC 100
Sultanate of Oman**

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1. QUOTATION BID NOTICE

1. Ministry of Housing and Urban Planning (MoH&UP), a government organization established under the Royal Decree No. (93/2020), invites bids from eligible bidders for “**Unified Portal**” tender.
2. The mode of tendering is through e-Tendering. E-Tendering is the process by which the physical tendering activity is carried out using internet and associated technologies in a faster and secure environment via the Tender Board.
3. Vendor registration can be done online by opening Website: at (<https://etendering.tenderboard.gov.om>)
4. Tender document will be allowed for download from above web site after successful vendor registration (hard copies of the tender document will not be provided) and submission of tender document cost.

5. CONTACT INFORMATION FOR E-TENDER PROCESS

Ministry of Housing and Urban Planning
P.O. Box 173, PC 100
Sultanate of Oman
Telephone Number: +968 2469 3333

6. MoH&UP reserves the right to accept or reject in part or full any or all the offers without assigning any reasons there for.

2. GENERAL TENDER DETAILS

Tender Document for	Unified Portal
Tender Reference No.	XXXX/YYYY/2024-03/01
Tender Document Cost	
Last date for acceptance of Tender Documents, Tender Cost	
Place of Submission of Tender Documents with original documents	
Pre-bid meeting date and time	
Date of online notice	
Document downloading start date	
Document downloading end date	
Last date and time for submission	
Technical bid opening date	
Address for communication	

3. Mandatory information required for pre-qualification of the Bidder.

I/We confirm that to the best of our knowledge this information is authentic and accept that any deliberate concealment will amount to disqualification at any stage.

Sr. No.	Particulars	Details
1. Name of the Firm		
2. Name of the Proprietor		
3. Partners/Directors Mobile No.		
4. Office Telephone Nos.		
5. Single Point of Contact Mobile No. for etender clarifications		
6. Head Office Address		
7. Email Address		
8. Year of Establishment		
9. Registration No. and Date of registration		
10. Status of the firm (Proprietor/Partnership/ Co.etc.)		
11. Name of Person		

Seal and Signature of the document to be uploaded on the E-tender portal.

Date:

Place:

Note:

4. INFORMATION FOR BIDDERS

1. Bids shall be submitted online only at Tender Board in local Omani currency.
2. The bidders can enroll themselves on the Tender Board website.
3. The tenderers should have Digital Signature Certificate (DSC) for filling up the Bids. The person signing the tender documents should be authorized for submitting the online e-tender.
4. Please go through the tender advertisement and the tender document carefully to understand the documents required to be submitted as part of the bid.
5. Bidder, in advance, should get ready the bid documents to be submitted as indicated in the tender document / schedule and generally, they can be in PDF / XLS / RAR / DWF/JPG formats. Bid documents may be scanned with 100 dpi with black and white option which helps in reducing size of the scanned document.
6. Bidder, must submit only two documents marked as follows: -
 - ✓ **Technical Proposal**
 - ✓ **Financial Proposal**
7. Please Make sure all format asked in tender document are properly uploaded online on the Tender Board Website for E- Procurement.
8. This Invitation for Bids is open to all Original Manufacturers/ their Authorized Dealers/ vendors / suppliers to quote on their behalf for this tender as per Manufacturer's Authorization Form and Oman laws on foreign investments, if any who possess the qualifying requirements as specified in the Tender. Any person signing a Tender shall submit documentary evidence that his signature on the Tender, submitted by him, is legally binding upon himself, his firm. If it is detected that the person so signing the Tender has no authority to do so, the MoH&UP and Tender Board, without prejudice to other civil and criminal remedies, not consider the Tender and hold the signatory liable for all costs and damages. Bidders should not be associated, or have been associated in the past, directly or indirectly, with a firm or any of its affiliates which have been engaged by the Purchaser to provide consulting services for the preparation of the design, specifications, and other documents to be used for the procurement of the goods to be purchased under this Invitation of Bids. The bidder or his agent must have an office in Oman. That the Bidder will assume total responsibility for the fault-free operation of equipment, application software, if any, along with training and training material, and maintenance during the warranty period and provide necessary maintenance services after end of warranty period if required. Bidders who meet the criteria given above are subject to be disqualified, if they have made untrue or false representation in the forms, statements and attachments submitted in proof of the qualification requirements or have a record of poor performance, not properly completing the contract, inordinate delays in completion or financial failure, etc. The Bidder should be a manufacturer or their dealer specifically authorized by the manufacturer to quote on their behalf of this tender as per manufacturer authorization form and Omani agents of foreign principals, if any who must have designed, manufactured, tested and supplied the equipment(s) similar to the type specified in the "Technical Specification". Such equipment must be of the most recent series/models incorporating the latest improvements in design. The models should be in successful operation for at least one year as on date of Bid Opening in Oman and is engaged in R&D activities.

5. CONDITIONS FOR SMALL & MEDIUM ENTERPRISES(SMEs) & Omanization.

A) SME's

1. As per government directives for Small, and Medium Enterprises (SMEs)
2. SMEs participating in the tender must submit a valid & authorized copy of certificate of registration with Ministry of Commerce & Industry (MoCI). The SME's Bidder to note and ensure that nature of services and goods/items manufactured mentioned in SME's certificate matches with the nature of the services and goods /items to be supplied as per Tender.
3. The registration certificate issued from MoCI must be valid as on Bid closing date of the tender. Bidder shall ensure validity of registration certificate in case bid closing date is extended.
4. The SMEs who have applied for registration or renewal of registration with MoCI but have not obtained the valid certificate as on close date of the tender, are not eligible for exemption/preference.
5. The SMEs registered with MoCI are exempted from payment of Tender documents & fees.
6. Relaxation of Norms for Small, and Medium Enterprises (SMEs):
 - a. Pre-qualification criteria with respect to Prior Turnover and Prior experience may be relaxed for Small, and Medium Enterprises as per government guidelines subject to meeting of quality and technical specifications.
 - b. However, there may be circumstances like procurement of items/services related to public safety, health, critical security operations and equipment, etc., wherein MoH&UP reserves the right to not consider relaxation of Prior Turnover and Prior Experience for SMEs as per government guidelines.

- B) Omanization Policy** - The Tenderer shall conform to the Laws of the Sultanate of Oman and his attention is particularly drawn to the Laws governing employment. All arrangements which affect the engagement, transport, paying, feeding, and housing of staff and other matters in connection therewith shall be subject to the Regulations and Codes of the Sultanate of Oman, now in force or which may be made from time to time during the period of the Contract. The Tenderer must comply with the minimum percentages for employing Omani in their organization in accordance with the Regulations and Codes issued by Ministry of labor failing to adhere to such requirement shall lead to the rejection of Tenderer's Tender.

6. GENERAL CONDITIONS OF RFP

The Bidder is required to give confirmation of their acceptance of the General Conditions of the Request for Proposal mentioned below which will automatically be considered as part of the Contract concluded with the successful Bidder (i.e., Seller in the Contract) as selected by the Buyer. Failure to do so may result in rejection of the Bid submitted by the Bidder.

1. **Law:** The Contract shall be considered and made in accordance with the laws of the Sultanate of Oman. The contract shall be governed by and interpreted in accordance with the laws of the Sultanate of Oman.
2. **Effective Date of the Contract:** The contract shall come into effect on the date of signatures of both the parties on the contract (Effective Date) and shall remain valid until the completion of the obligations of the parties under the contract. The deliveries and supplies and performance of the services shall commence from the effective date of the contract.
3. **Standard Arbitration Clause:** All disputes or differences arising out of or in connection with the present contract including the one connected with the validity of the present contract or any part thereof, should be settled by bilateral discussions. Any dispute, disagreement or question arising out of or relating to this contract or relating to construction or performance (except as to any matter the decision or determination whereof is provided for by these conditions), which cannot be settled amicably, shall within sixty (60) days or such longer period as may be mutually agreed upon, from the date on which either party informs the other in writing by a notice that such dispute, disagreement or question exists, will be referred to a sole Arbitrator. Within sixty (60) days of the receipt of the said notice, an arbitrator shall be nominated in writing by the authority agreed upon by the parties. The sole Arbitrator shall have its office in Muscat or such other place in Oman as may be mutually agreed to between the parties. The arbitration proceedings shall be conducted under the Oman Arbitration and Conciliation Act, and the award of such Arbitration Tribunal shall be enforceable in Omani Courts only. Each party shall bear its own cost of preparing and presenting its case. The cost of arbitration including the fees and expenses shall be shared equally by the parties, unless otherwise awarded by the sole arbitrator. The parties shall continue to perform their respective obligations under this contract during the pendency of the arbitration proceedings except in so far as such obligations are the subject matter of the said arbitration proceedings.
4. **Penalty for use of Undue influence:** The Seller undertakes that he has not given, offered or promised to give, directly or indirectly, any gift, consideration, reward, commission, fees, brokerage or inducement to any person in service of the Buyer or otherwise in procuring the Contracts or forbearing to do or for having done or forborne to do any act in relation to the obtaining or execution

of the present Contract or any other Contract with MoH&UP. Giving or offering of any gift, bribe or inducement or any attempt at any such act on behalf of the Seller towards any officer/employee of the Buyer or to any other person in a position to influence any officer/employee of the Buyer for showing any favor in relation to this or any other contract, shall render the Seller to such liability/penalty as the Buyer may deem proper, including but not limited to termination of the contract, imposition of penal damages, forfeiture of the MoH&UP Guarantee and refund of the amounts paid by the Buyer.

5. **Non-disclosure of Contract documents:** Except with the written consent of the Buyer/ Seller, other party shall not disclose the contract or any provision, specification, plan, design, pattern, sample or information thereof to any third party.
6. **Liquidated Damages:** In the event of the Seller's failure to submit the Bonds, Guarantees and Documents, supply the stores/goods and conduct trials, installation of equipment, training, etc. as specified in this contract, the Buyer may, at his discretion, withhold any payment until the completion of the contract. The BUYER may also deduct from the SELLER as agreed, liquidated damages to the sum of 0.5% of the contract price of the delayed/undelivered stores/services mentioned above for every week of delay or part of a week, subject to the maximum value of the Liquidated Damages being not higher than 10% of the value of delayed stores.
7. **Termination of Contract:** The Buyer shall have the right to terminate this Contract in part or in full in any of the following cases:
 - (a) The Seller is declared bankrupt or becomes insolvent.
 - (b) The Buyer has noticed that the Seller has utilized the services of any Omani/Foreign agent in getting this contract and paid any commission to such individual/company etc.
 - (c) With mutual agreement
 - (d) As per decision of the Arbitration Tribunal.
8. **Notices:** Any notice required or permitted by the contract shall be written in the Arabic language and may be delivered personally or may be sent by registered pre-paid mail/airmail or email, addressed to the last known address of the party to whom it is sent.
9. **Patents and other Industrial Property Rights:** The prices stated in the present Contract shall be deemed to include all amounts payable for the use of patents, copyrights, registered charges, trademarks and payments for any other industrial property rights. The Seller shall indemnify the Buyer against all claims from a third party at any time on account of the infringement of any or all the rights mentioned in the previous paragraphs, whether such claims arise in respect of manufacture or use. The Seller shall be responsible for the completion of the supplies including spares, tools, technical literature and training aggregates irrespective of the fact of infringement of the supplies, irrespective of the fact of infringement of any or all the rights mentioned above.

10. **Amendments:** No provision of present Contract shall be changed or modified in any way (including this provision) either in whole or in part except by an instrument in writing made after the date of this Contract and signed on behalf of both the parties and which expressly states to amend the present Contract.

11. Evaluation and Comparison of Bids:

The bidder meeting the General Eligibility Criteria will be considered for technical evaluation. The Bidder needs to comply with all the eligibility criteria. Non-compliance to any of these criteria would result in outright rejection of the Bidder's proposal. The Bidder is expected to provide proof for each of the points for eligibility evaluation.

The decision of the MoH&UP would be final and binding on all the Bidders to this document. The MoH&UP may accept or reject any offer without assigning any reason what so ever. At the sole discretion and determination of the MoH&UP, the MoH&UP may add any other relevant criteria for evaluating the proposals received in response to this RFP. The evaluation will be a three-stage process. The stages are:

- a) General Eligibility evaluation
- b) Technical evaluation
- c) Techno-Commercial evaluation

Technical Evaluation Scoring

- i. The objective of designing this evaluation method is to facilitate the selection of the most technically capable system which can appropriately meet the business requirements of the MoH&UP. The bidders would be screened based on General Eligibility Criteria. Post qualification of a Bidder on these criteria, bid would be evaluated on technical soundness. All bids shall be evaluated by an Evaluation Committee set up for this purpose by the MoH&UP.
- ii. The first stage of evaluation will be evaluating the technical proposals of the shortlisted bidders after the eligibility screening. The bidders scoring less than 75 marks (cut-off marks) out of 100 marks in the technical evaluation shall not be considered for further evaluation. Once the evaluation of technical proposals is completed, the bidders who score more than the prescribed cut-off score will be invited for next stage of techno-commercial evaluation process.
- iii. The decision of the MoH&UP in regard to Evaluation would be final and binding on all the Bidders to this document. The MoH&UP may accept or reject an offer without assigning any reason whatsoever.
- iv. The Technical bid would be rated on a total score of 100 with the major areas as follows and the ranking of technical score would be derived for each Bidder.

Techno- Commercial Evaluation

- i. The Commercial Bid will be opened only if the Technical Bid is cleared and accepted.
- ii. MoH&UP reserves the right to modify / amend the evaluation process at any time during the Bid process, without assigning any reason, whatsoever, and without any requirement of intimating the Bidders of any such change. Any time during the process of evaluation MoH&UP may seek specific clarifications from any or all Bidders.
- iii. MoH&UP decision in respect to evaluation methodology will be final and binding and no claims whatsoever in this respect will be entertained.
- iv. MoH&UP also reserves the right to re-issue / re-commence / cancel the Bid/Bid process. Any decision in this regard by MoH&UP shall be final, conclusive and binding on the Bidders.
- v. At the sole discretion and determination of the MoH&UP, the MoH&UP may add any other relevant criteria for evaluating the proposals received in response to this RFP. The evaluation of the response to this RFP will be done on a 70-30 techno-commercial evaluation method. 70% weightage is to the response to Table below – "Technical Bid evaluation criteria" and 30% weightage to the

response to “Commercial Bid”. The evaluation will be done on a total score of 100. An illustration of the techno- commercial evaluation methodology has been given below:

$$\text{Total score} = 0.70 \times T(s) + 0.30 \times F(s)$$

Where:

$$F(s) = (LEC / EC) \times 100$$

Acronyms:

T(s) stands for percentage of technical evaluation score out of 100.

F(s) stands for percentage of a consultant's commercial price compared to the lowest quoted price.

EC stands for Evaluated Cost of the Commercial offer quoted for by the consultant.

LEC stands for Lowest Evaluated Cost of the Commercial offer amongst the consultants

- vi. The consultant scoring the highest marks based on the criteria given above will be awarded all the assignments given in scope of work.
- vii. Commercial Bid of only technically qualified bidders will be opened in the presence of technically qualified Bidder's representatives on date and time which will be communicated to the qualified Bidders in due course.
- viii. if the bidder fails to score for any line item in minimum technical specification, the MoH&UP reserve the right to score them '0' (zero).

12. Notices to local bodies:

- The Service Provider shall comply with and give all notices required under any law, rule, regulations, in the country relating to works.
- No Bidder shall contact the MoH&UP on any matter relating to its Bid, from the time of the Bid opening to the time the Contract is awarded to successful bidder(s).
- Any effort by a Bidder to influence MoH&UP 's Bid evaluation, bid comparison or contract award decisions may result in the rejection of the Bid.
- I / We hereby declare that I / We have read and understood the above instructions for the guidance of the Tenderers.

7. SPECIAL CONDITIONS OF RFP

- 1. Option Clause:** The contract will have an Option Clause, wherein the Buyer can exercise an option to procure an additional 50% of the original contracted quantity in accordance with the same terms & conditions of the present contract. This will be applicable within the currency of contract. The Bidder is to confirm the acceptance of the same for inclusion in the contract. It will be entirely the discretion of the Buyer to exercise this option or not.
- 2. Repeat Order Clause:** The contract will have a Repeat Order Clause, wherein the Buyer can order up to 50% quantity of the items under the present contract within six months from the date of supply/successful completion of this contract, the cost, terms & conditions remaining the same. The Bidder is to confirm acceptance of this clause. It will be entirely the discretion of the Buyer to place the Repeat order or not.
- 3. Advance Payments:** No advance payment(s) would be made OR Advance payments may be made up to 30% against appropriate MOHUP guarantee or any authorized guarantee, as acceptable to the Buyer.
- 4. Annual Maintenance Contract (AMC) Clause:** The following AMC clause will form part of the contract placed on successful Bidder (only whenever and wherever applicable cases). The AMC services should cover the repair and maintenance of all the equipment and systems purchased under the present Contract. The Buyer Furnished Equipment which is not covered under the purview of the AMC should be separately listed by the Seller. The AMC services would be provided in two distinct ways:
 - i. Preventive Maintenance Service:** The Seller will provide a minimum of four Preventive Maintenance Service visits during a year to carry out functional check-ups and minor adjustments/ tuning as may be required.
 - ii. Breakdown maintenance Service:** In case of any breakdown of the equipment/system, on receiving a call from the Buyer, the Seller is to provide maintenance service to make the equipment/system serviceable.
 - a. Response time:** The response time of the Seller should not exceed 48 hours from the time the breakdown intimation is provided by the Buyer.
 - b. Maximum repair turnaround time for equipment/system** would be 7 days. However, the spares should be maintained in a serviceable condition to avoid complete breakdown of the equipment/system.
 - c. Technical Documentation:** All necessary changes in the documentation (Technical and Operators manual) for changes carried out on hardware and software of the equipment will be provided.
 - d. During the AMC period,** the Seller shall carry out all necessary servicing/repairs to the equipment/system under AMC at the current location of the equipment/system. Prior permission

of the Buyer would be required in case certain components/sub systems are to be shifted out of location. On such occasions, before taking over the goods or components, the Seller will give suitable MOHUP guarantee to the Buyer to cover the estimated current value of item being taken.

- e. The Buyer reserves its right to terminate the maintenance contract at any time without assigning any reason after giving a notice of 2 months. The Seller will not be entitled to claim any compensation against such termination. However, while terminating the contract, if any payment is due to the Seller for maintenance services already performed in terms of the contract, the same would be paid to it as per the contract terms.

5. Force Majeure clause:

- a. Neither party shall bear responsibility for the complete or partial non-performance of any of its obligations (except for failure to pay any sum which has become due on account of receipt of goods under the provisions of the present contract), if the non-performance results from such Force Majeure circumstances as Flood, Fire, Earth Quake and other acts of God as well as War, Military operation, blockade, Acts or Actions of State Authorities or any other circumstances beyond the parties control that have arisen after the conclusion of the present contract.
- b. In such circumstances the time stipulated for the performance of an obligation under the present contract is extended correspondingly for the period of time of action of these circumstances and their consequences.
- c. The party for which it becomes impossible to meet obligations under this contract due to Force Majeure conditions, is to notify in written form the other party of the beginning and cessation of the above circumstances immediately, but in any case, not later than 10 (Ten) days from the moment of their beginning.
- d. Certificate of a Chamber of Commerce (Commerce and Industry) or other competent authority or organization of the respective country shall be a sufficient proof of commencement and cessation of the above circumstances.
- e. If the impossibility of complete or partial performance of an obligation lasts for more than 6 (six) months, either party hereto reserves the right to terminate the contract totally or partially upon giving prior written notice of 30 (thirty) days to the other party of the intention to terminate without any liability other than reimbursement on the terms provided in the agreement for the goods received.

8. Introduction, Scope of Work, and Specifications

8.1) Introduction

MoH&UP is responsible for real-estate management within Sultanate of Oman. The MoH&UP has guided by expertise at the executive level, by senior policy makers, leading players in industry as well as professionals in real-estate trade. With offices spread across Oman, the MoH&UP aspires to boost the businesses of real-estate and SMEs.

MoH&UP has taken several IT initiatives to keep pace with changing technology. MoH&UP has Computerized its offices and has implemented various IT solutions across Oman with Data Centre at Muscat, and G-cloud for Disaster Recovery. The MoH&UP Solution covers all 11 governate offices across Oman, which are connected to the Data Centre through a Wide Area Network (MPLS).

MOHUP has embarked on an ambitious organizational and sectoral transformation through sustainable housing and urban development initiatives.

As part of its vision, MOHUP is poised to deliver impactful projects such as the following:

- Future Cities like Sultan Haitham City and Al Jabal Al Akhdar
- Downtown Al Khuwair Project
- Implementation of the Greater Muscat plan
- Activation of the Omani building code
- Development of Plans for Greater Sohar & Salalah
- Development of Housing Projects as part of "Housing for All" initiative

MOHUP's strategic plan hinges on four key pillars: empowering people, embracing a digital leap, strengthening foundations, and building together. These guiding principles will translate into tangible actions, such as capacity-building programs, streamlined processes through technology, clear regulations, and enhanced public engagement.

8.2) Objectives of the Project

The digital transformation journey continues with the digitization of all Ministry services and the launch of a unified portal leveraging blockchain technology. Key legislation related to urban planning, real estate, and housing will solidify the legal framework for sustainable development. The significant initiatives for 2024 build on a slew of successes achieved in 2023. The Ministry's "Citizen First" philosophy yielded impressive results. Customer satisfaction skyrocketed by 65%, a testament to streamlined procedures, enhanced service quality, and expanded accessibility channels. Over 280,000 individuals were served in dedicated halls, and countless others received assistance through phone and social media channels.

The digital revolution permeated the Ministry's operations, with 56 services automated on platforms like Tatweer and Amlak. This shift not only streamlined processes but also empowered citizens with convenient online access. The organization is currently on a dynamic digital transformation journey, implementing initiatives such as blockchain integration, chatbot deployment, a unified portal for services, and customer satisfaction management.

The objective of this RFP is to invite proposals from qualified vendors to develop a unified brand identity and create a common gateway portal for all online services offered by MoHUP. The primary goal is to enhance user experience, streamline access to services, and establish a cohesive visual identity across all portals and to create a robust content management system. The proposed portal will serve as a central hub for information, resources, and services related to housing, urban planning, and development initiatives. The website aims to enhance accessibility, transparency, and engagement with stakeholders, including citizens, policymakers, and industry professionals.

8.3) Scope of Work

The scope of work for this proposed project is mentioned below:

1. Unified Brand Identity Development:

Develop a comprehensive brand identity that reflects the values, mission, and vision of the Ministry of Housing and Urban Planning, while following the design guidelines of the communications department of MoHUP. Use consistent branding elements including logo, color palette, typography etc as per MoHUP guidelines and create new visual assets to be implemented in the portal.

2. Common Gateway Development:

Design and implement a centralized portal that serves as the main entry point for accessing all online services offered by MoHUP.

Provide seamless access to various services while ensuring security and privacy of user data.

Implement intuitive navigation and user interface design to enhance usability and accessibility for all users.

3. Content Management System (CMS) with Workflows:

Implement a robust content management system with flexible workflows to streamline content creation, approving, publishing, backup , and maintenance processes.

Enable content editors to create, edit, and manage content collaboratively while adhering to predefined workflows and approval processes.

Integrate version control and content scheduling functionalities to ensure timely publication and updates.

4. Portal Consolidation and Migration:

Assess existing portals and services offered by MoHUP to identify redundancies and opportunities for consolidation.

Provide support and training for administrators to manage and maintain the unified portal effectively.

5. Customization and Personalization:

Implement customization options to allow users to personalize their experience within the unified portal.

Integrate analytics and user feedback mechanisms to gather insights and continuously improve the user experience.

6. Technical Requirements:

Ensure compatibility with a wide range of devices, browsers, and operating systems to maximize accessibility.

Utilize responsive design principles to ensure optimal performance across desktop, mobile, and tablet devices.

Implement robust security measures including encryption, authentication, and authorization mechanisms to safeguard user data.

Integration of multilingual support to accommodate Arabic and English language preferences so as to reach a wider audience.

7. Past Experience

Proven experience in website development, particularly for government/public sector organizations with at least 5 references of responsive portals and mobile Apps. Proficiency in content management systems (CMS). Should have demonstrated expertise in user experience (UX) and user interface (UI) design principles.

8. The vendor must refer to the MTCIT document about standards for Designing Unified Websites and E-Services May 2022.

8.3.1) Broad Scope of Work

- The successful bidder, called vendor or supplier or service provider, will be the system integrator or consultant to provide, operationalize and maintain the solution to the full satisfaction of the MOHUP with all the required functionalities.
- The vendor, in coordination with the OEM would make a detailed study of the MOHUP infrastructure and requirements relating to the solution, prepare a detailed plan document/road map mentioning all the pre-requisites, time-frame of milestones/achievements leading to the full operationalization of the solution.
- The proposed project should provide the following at a minimum:
 - Unified portal with CMS facilities.
 - Installation, configuration, training and maintenance plan

Proposals should include:

- Company profile, highlighting relevant experience in website development for government or public sector clients.
- Approach and methodology for designing and developing the MOHUP website, including UX/UI considerations.
- Proposed timeline with key milestones and deliverables.
- Detailed cost breakdown, including design, development, testing, and any additional services.
- References or case studies of similar projects completed for government entities.

Proposals will be evaluated based on the following criteria:

- Experience and expertise in website development for government or public sector organizations.
- Alignment with project requirements and ability to meet the objectives of MOHUP.

- Proposed approach, including UX/UI design considerations and content management capabilities.
- Cost-effectiveness and value proposition.
- Track record of delivering high-quality solutions within budget and schedule constraints.
- Design and Development team should be locally available.
- Local SMEs will have more weightage.

Deliverables

- Portal and required documentations
- The project is expected to be completed within a maximum of 2 months.

8.4) Technical Specifications

Sr. No.	Technical Specification for Unified Portal Project	Bidder's Compliance (Yes/No)	Bidder's Remarks
1	Architecture, deployment and configuration		
1.1	The solution should be enterprise-ready, easy to deploy and scalable.		
1.2	Weightage will be given for solutions that are built on open-source technologies.		
1.3	MoHUP will be the sole owner of the solution and the source code of all artifacts used in the project must be shared with MoHUP with version control.		
1.4	Solution should support High Availability (Active-active and Active-passive) in production site (2 nodes to start and should be scalable out of the box) and single node at DR site.		
1.5	Solution should be configured in MoHUP DR environment and data/artefacts should be synched with the PRD environment periodically (Frequency will be shared later). If the solution fails at production, the DR instance should seamlessly take-over without any loss of data or artefacts.		
1.6	Solution should provide centralized audit repository for audit data collected against all portal activities. The log files should be stored within the solution. It should be tampering proof.		
2	Layout and design		
	Should provide improved accessibility and improved customer experience for users of the Portal by presenting relevant and		

2.1	frequently needed services and information to the users based on their type.		
2.2	Should provide flexible and customizable portal pages layouts for different stakeholders.		
2.3	Should support different user groupings and user types (e.g. citizens, residents, visitors, business entity, government officials, consultants, brokers etc.) and provide a customized and targeted experience to its users based on their classification, demography and interest.		
2.4	Should contain rich and dynamic content.		
2.5	All portal sections should have a unified Look & Feel and common portal functionalities should be shared between the different sections of the Portal and should be accessible to all.		
2.6	Should be able to integrate with an enterprise class content management system with workflows for content creation, approval and publishing.		
2.7	Should support an enhanced directory and a central repository of information about all the services provided by MOHUP through the portal.		
2.8	Should provide an E-service catalogue with a detailed list of services offered by MOHUP to its different target audience and it typically includes: description of the service, timeframes associated with the service, who can use the service, how to use the service, service statements which show responsibility and service dependencies, and service costs.		
2.9	Should provide an events calendar section showing an integrated view of all the events (conferences, symposiums, lectures, etc.) related to ministry with all the relevant event details (event time, location, cost, target audience, etc.).		
2.10	Event registration form should be a part of the system with email and SMS gateway integration to send out invites and confirmation.		
2.11	Should include a news section that displays categorized and searchable news items about announcements of new e-services, services or new portal features, updated regulations or laws, events, promotions, appointments or any other type of relevant news.		
2.12	Should provide blogs, which provide ministry employees and certain stakeholders with a new effective way of sharing their thoughts and points of view with the portal target audience and encourage participation without the need for official communication		
2.13	Should provide periodic newsletters that will be sent to through the portal.		
2.14	Should provide alert services (via SMS or e-mail) to its users. Alert services should enable registered users to indicate their interest in some of the information or services provided by the		

	portal and allow them to register to receive alerts for any updates or additions.		
2.15	Should provide advanced accessibility features to allow people with visual, audio, or motor disabilities to access the portal. This includes features like text to speech, magnifier, changing to monochrome etc		
2.16	Should be able to provide advanced portal analysis and statistics such as total number of hits, total number of portal users, network bandwidth used (in/out), page views, event registrations, heatmap of news consumption etc		
2.17	Should support chat features allowing end users to chat with the operators. Should have the ability to archive discussions and link them to a trouble ticket		
2.18	Should support chatbot		
2.19	Should support and follow Web3.0 standards and REST standards and design principles providing less UI related interactions between web browsers and portal server		
2.20	Should support integration with 3 rd party widgets		
2.21	Entire portal should follow responsive design guidelines		
2.23	Fully compliant with W3C standards		
2.24	For content creation, media files need to be created by photoshoot or by purchase and the copyright of such materials will be solely with MOHUP		
2.25	Portal should be in Arabic and English		
2.26	Portal should support extensions		
2.27	Portal should be optimized for search-engines like google, bing and yahoo		
3	Social Media Integration		
3.1	Should support social media features including but not limited to Facebook, Instagram and X integration		
3.2	The system should have the feature to obtain end users feedback and suggestions through multiple channels like intranet, forums, instant messaging and emails		
4	Content Management		

4.1	Should have an easy to use and intuitive tool for content creation, editing, publishing, and removal with customizable users roles for authentication and authorization purposes.		
4.2	Should have features to import and export content.		
4.3	Should provide content versioning capabilities and version control (check-in / check-out).		
4.4	Should have a customizable content work flow engine.		
4.5	Should support multi language content (throughout the content lifecycle) and content translation.		
4.6	Should have content scheduling capability with 'publish at' and 'expire on' features.		
4.7	Should have advanced spelling capability with features for quick fixes of common typos / spelling errors on the fly (auto-correct), spell-check, and spelling suggestions.		
4.8	Should support the ability to add, change, remove, and manage content metadata.		
4.9	Should support logging, reporting, and auditing features.		
4.10	Should have multi-browser support (IE, Firefox, Chrome, Safari etc.)		
4.11	Content management workflow should be integrated with LDAP for defining roles and providing authentication.		
4.12	Should support content statistics. Users should be able to view content statistics including the number and type of content and the usage statistics.		
4.13	Should provide advanced search and retrieve capabilities with ability to search by author, editor, document name, document content, etc. The search capability should also be able to fetch data from multiple data sources and support tagging		
4.14	Should be able to receive web service requests via a variety of transport channels included but not limited to SOAP, REST, JMS, HTTP / HTTPS, etc.		
4.15	Should have polls targeted at the various types of users to gather a snapshot of user opinion and feedback on various topics.		
4.16	Should have the ability to gather information from users through surveys. It should also have the ability to calculate and display survey results in real-time and in different formats.		
4.17	WYSIWYG HTML Editor with Collaborative Rich Text Editing		

5	Security		
5.1	Should be always on Secure Socket Layer (SSL) based communication		
5.2	Should be able to support a range of secure remote file operations such as reliable managed file transfer, file access, and file management in a secured manner.		
5.3	Should ensure that all activities in the portal is secure and can be logged and audited.		
5.4	Should provide capabilities to encrypt the file transfer internally to avoid data tapping.		
5.5	Should provide a centralized and policy based access control mechanism for authentication		
5.6	Should support cross domain identity management functionality to authenticate and authorize individuals of internal and external entities into the system, determine their permissions, and control access to the resources accordingly		
5.7	Should support Transport Layer Security (TLS) and Secure Socket Layer cryptographic protocols for providing cryptography and message reliability		
5.8	Should provide an easy to use administration console and a security monitoring tool		
5.9	The system should support user, roles and permissions management		
5.10	The system should has the ability to automatically terminate users sessions if the session is not active for a predefined time interval		
5.11	Should have protection from code injection		
5.12	Broken Authentication and session management		
5.13	Should have inbuilt mechanisms to counter insecure direct object reference, security mis-configuration, sensitive data exposure, cross site request forgery, unvalidated redirects and forwards, XML external entity processing attacks, servers side request forgery attacks		
6	Deployment and Training		
6.1	Should support on-premise and cloud deployments		
6.2	The training should include the architecture, software components, policy installation, and troubleshooting, reporting and other aspects of the solution.		

8.5) Training

Though Training is not a major deliverable of this project, adequate sessions need to be conducted to run through the final deliverables. Project completion will be accepted only after the signoff of this session by the delegated attendees from MOHUP.

8.6) Privacy and Security Safeguards.

- 1) Bidder to ensure that the data is encrypted as part of a standard security process for highly sensitive content or choose the right cryptographic algorithms evaluating security, performance, and compliance requirements specific to their application and may choose from multiple key management options.
- 2) Bidder to notify the MoH&UP promptly in the event of security incidents or intrusions, or requests from others to access the data, to enable the MoH&UP to manage these events proactively.
- 3) The Bidder shall report forthwith in writing of information security breaches to the MoH&UP by unauthorized persons (including unauthorized persons who are employees of any Party) either to gain access to or interfere with the Project's Data, facilities or Confidential Information.
- 4) The bidders undertake to treat information passed on to them under as classified. Such Information will not be communicated / published / advertised by the bidders to any person/organization without the express permission of the MoH&UP.

8.7) Confidentiality

- 1) The Bidder shall execute non-disclosure agreements with the MOH&UP. For the avoidance of doubt, it is expressly clarified that the aforesaid provisions shall not apply to the following information:
 - a. information already available in the public domain;
 - b. information which has been developed independently by the Service Provider;
 - c. information which has been received from a third party who had the right to disclose the aforesaid information;
 - d. Information which has been disclosed to the public pursuant to a court order.
- 2) The Subcontractors will be permitted to obtain customer data only to deliver the services the bidder has retained them to provide and will be prohibited from using customer data for any other purpose. The bidder remains responsible for its subcontractors' compliance with bidder's obligations under the Project.

9. INSTRUCTIONS TO BIDDERS

1.0 Location - Ministry of Housing and Urban Planning (MoH&UP), Muscat

2.0 Any printing or typographical errors /omission in tender document shall be referred to MoH&UP and their interpretation regarding correction shall be final and binding on Service Provider.

3.0 Transfer of Tender Documents - The payment will be made after receiving the Hard-Copy Invoice and satisfactory completion of the work.

4.0 Signing of the contract:

- a) The successful Bidder may be required to execute a non-disclosure agreement (NDA) with MoH&UP within 30 days from the date of receipt of the notice of acceptance of tender. In the event of failure on the part of the successful Bidder to sign the agreement in the above-stipulated period, the MoH&UP may cancel the order.
- b) Until the Agreement is formally signed, the Work Order / Letter of Acceptance of Tender issued to the successful Bidder and accepted by them may be operative and binding on the MoH&UP.

5.0 On acceptance of the tender, the name of the accredited representatives of the Bidder who would be responsible for taking instructions from MoH&UP shall be mentioned by the Bidder.

6.0 If so, decided, MoH&UP reserves the right to appoint PMC (Project Management Consultant) or any other agency to get the quality of works checked, measurements recorded, including certification of bills etc.

7.0 The MoH&UP has the right to reduce or increase the scope of work. The MoH&UP may give 3 months' notice period for termination of contract if service is not satisfactory to the MoH&UP.

8.0 Notices to local bodies - The Bidder / Service Provider shall comply with and give all notices required under regulations or by laws of Sultanate of Oman relating to works.

I/We hereby declare that I/We have read and understood the above instructions for the guidance of the Bidders.

Name		Signature & Seal
Designation		
Organization		
Date		

Annexure - II

10. E-Tendering Process Compliance Statement

The following terms and conditions are deemed as accepted by you for participation in the bid event (Tender Ref: **XXXX/YYYY/2024-03/01**).

1. The price once submitted cannot be changed.
2. Technical and other non-commercial queries (not impacting price) can be routed to the respective contact personnel of the MoH&UP indicated in the tender document. Bidding process related queries could be addressed to Tender Board/MoH&UP.
3. Inability to bid due to glitch in telephone lines, Internet response issues, software or hardware hangs will not be the responsibility of Tender Board or the MoH&UP. However, Tender Board, shall make every effort to ensure availability of technology resources to enable continuous bidding.
4. Tender Board does not take responsibility beyond the bid event. Order finalization and post order activities would be transacted directly between bidder and the MoH&UP.
5. Bids once made cannot be withdrawn or modified under any circumstances.
6. The MoH&UP reserves the right to extend or reschedule or annul the e-tender process.
7. The bidders are advised to visit Tender-Board.gov.om for any corrigendum etc.

I / We have read, understood and agree to abide by the e-tendering process compliance statement.

Name		Signature & Seal
Designation		
Organization		
Date		

11. UNDERTAKING FROM THE BIDDER

To,

Mr. Tender Board/MoH&UP

Dear Sirs,

Ref: UNIFIED PORTAL

Ref. No: XXXX/YYYY/2024-01/01

I / we further agree to execute and complete the work within the time frame stipulated in the tender scope of document. I / we agree not to employ Sub-Service Providers without the prior approval of the MoH&UP. I / We agree to pay Sales Tax, Works Contract Tax, VAT, all Royalties, and all other applicable taxes prevailing and be levied from time to time on such items for which the same are liable and the rates quoted by me/us are Exclusive of the same.

I / we understand that you are not bound to accept the lowest tender or bound to assign any reasons for rejecting our tender. We unconditionally agree MoH&UP's preconditions as stipulated in the tender documents and empanelment process.

I / We agree that in case of my/our failure to execute work in accordance with the specifications and instructions received from the MoH&UP, during the course of the work, MoH&UP reserves the right to terminate my contract.

I / We have not been blacklisted by the Government Authority in Oman or any Financial Institution in Oman as on date of submission of response.

I / We also undertake that, we were never involved in any legal case that may affect the solvency / existence of our firm or in any other way that may affect capability to provide / continue the services to MoH&UP.

Yours truly,

Name		Signature & Seal
Designation		
Organization		
Date		

12. Self-Declaration for Compliance

(On Company Letterhead)

I < **Name**> working as < **Designation**> in < *M/s. Company Name* > hereby declare that I am entrusted with the responsibility of ensuring compliance with various laws applicable to the company in the Administration of business and affairs of the company.

After having examined and considered all relevant information and based on the information furnished by the concerned officers, I, do hereby certify that;

1. Our company complied with all applicable laws, enactments, orders, rules, regulations and other statutory requirements of the Government of Oman, and other statutory and local authorities concerning the business and affairs of the company.
2. Paid all applicable statutory dues on due dates.
3. Maintain proper registers, records, documents and books and filed proper returns, forms and statements and furnished necessary particulars to the relevant authorities.
4. Not done or committed any act or entered into any transactions in violation of any statutory provisions.
5. Our company shall strictly follow and complied to MoH&UP, policies, procedures and security measures during contract period.
6. Our company will produce all documents for verification process as per MoH&UP 's requirement and various audit compliance.

Name		Signature & Seal
Designation		
Organization		
Date		

13. Eligibility Criteria of the Bidder**Minimum Eligibility Criteria**

Sl. No.	Criteria	Compliance (Yes/No)	Supporting Documents Required
1	The bidder should be a registered Company/Partnership/LLC under the Oman's laws, and should be in existence for minimum of Five years as on the date of E- tender.		Attach Copy of Certificate of Incorporation
2	The bidder should have minimum annual turnover of 999 Omani Riyals during the last three financial years (i.e. 2018-19, 2019-20, 2020-21). (Please provide audited annual reports, Balance Sheet, Profit & Loss accounts for the same).		Attach annual audited balance sheet for last three financial years
3	The bidder should have earned both operating as well as net profit for three financial years i.e., 2018-19, 2019-20, 2020-21 (Please provide audited annual reports, Balance Sheet, Profit & Loss accounts for the same).		Audited Balance sheet or Profit/Loss statement of the firm to be provided of last three financial years
4	Bidder should be either an Original Equipment Manufacturer (OEM) of devices/software solutions or authorized partner of OEM. In case the bidder is an Authorized partner of the OEM, Bidder needs to provide Manufacturer Authorization Form (MAF) from OEM stating that bidder is authorized partner of OEM and authorized to participate in this tender and in case the bidder is not able to perform obligations as per contract during the contract period, contracted services will be provided by OEM. OEM can quote directly or through authorized partners. However, both i.e. OEM & their authorized partner cannot participate in the RFP. In case, both (OEM & his authorized partner) participate, only bid of the OEM will be considered.		
5	The companies or firms, bidding for tender, should have not been blacklisted by any of Government Authority. The bidder shall give an undertaking (on their letter head) that they have not been blacklisted by any of the Govt. Authority. In case, in the past, the name of their Company was blacklisted by any of the Govt. Authority, the name of the company or organization must have been removed from the black		

	list as on date of submission of the tender, otherwise the bid will not be considered		
6	Bidder should have presence in Oman. (Please provide the details such as address of the office, contact no. of the office, number of & level of technical staff working at these places etc.)		Address in Oman
7	Bidder should submit The In-Country-Value (ICV) Plan		Attach Copy of ICV Plan

14. Technical Evaluation Criteria (70%)

No.	Technical Evaluation Criteria	Maximum Marks	Marks Scored	Remarks
1	Company Profile ➤ Assets (Resources, Knowledge Capital, Customer Base ...) ➤ Local/Regional/International Presence ➤ Financial Capability to Fulfill Project ➤ Technology Relevant Experience ➤ Success Stories ➤ Alliances & Partners ➤ Bidder Quality Certification ➤ Total Number of proposed solutions by OEM/bidder in Oman ➤ Total Number of proposed solutions deployments by OEM/bidder in Oman ➤ Bidder implementation experience of solution in public sector in Oman	20		
2	Service Delivery and Industry Understanding ➤ Overall confidence in the company to provide the services ➤ Understanding of the industry trends, challenges and best practices ➤ Training and Knowledge Transfer ➤ Added Value Services ➤ Total Number of proposed Identity and Access Management deployment by OEM/bidder in Oman.	10		
3	People ➤ Proposed Team Structure ➤ Team Relevance Experience to requested Service ➤ Depth of Experience and Knowledge ➤ Local / Regional Experience ➤ Cultural Awareness ➤ Delivery Capacity ➤ Account management and Customer Relationship Management	10		
4	Project Management ➤ Project Management Methodology ➤ Project Planning (Phasing, accuracy, completeness, clarity)	5		

	➤ Project risk profiling, analysis and risk management plans ➤ Design & Development ➤ Implementation ➤ Post-implementation Support ➤ Deliverables ➤ Documentation ➤ Time management and project duration ➤ Task management with milestones			
5	Compliance with MOHUP Terms & Conditions ➤ Compliance with Payment Schedule Activity Milestones ➤ Compliance with Payment Schedule ➤ Compliance with RFP structure ➤ Inclusion of services rates for future requirement ➤ Understanding of scope of work, Presentation and Methodologies, Procedures, Tools, Utilities ➤ Templates Developed / used during execution of previous assignments and arrangements for similar projects etc.	5		
6	Technical Specifications ➤ (As per the Technical Specifications “8.4” table above)	50		
	Total Marks	100		

Note: The Bidder/ Vendor should meet the technical specification as per scope of work. Non-compliance to any one of the technical specifications, the MoH&UP reserves the right to score them ‘0’ (zero).

Name		Signature & Seal
Designation		
Organization		
Date		

15.COMERCIALPROPOSAL:**15.1) Capital Cost**

S. No.	Component	Cost (Amount in OMR)	Remarks
1	UNIFIED PORTAL		

15.2) Recurring Cost

S. No.	Component	Cost (Amount in OMR)	Remarks
Annual Maintenance Cost (AMC) – Starts from second year. This cost is applicable for second, third, fourth, and fifth year. Mention yearly cost.			
1	Second Year AMC	NA	
2	Third Year AMC	NA	
3	Fourth Year AMC	NA	
4	Fifth Year AMC	NA	

*** Special Note: All prices should be exclusive of Government Tax.**

16. NON-DISCLOSURE AGREEMENT

This Agreement is made on the _____ day of _____ by and between

_____, (a _____ incorporated under the _____) having its office at _____ (hereinafter referred to as “_____” or the “**Receiving Party**”, which expression unless repugnant to the context or meaning thereof be deemed to include its successors and assigns) of the **ONE PART**;

AND

Ministry of Housing and Urban Planning (MoH&UP), a government organization established under the Royal Decree No. (XXXX), _____ hereinafter referred “MoH&UP” or “**Disclosing Party**”) which expression unless repugnant to the context or meaning thereof be deemed to include its successors and assigns) of the **OTHER PART**.

_____ & MoH&UP are hereinafter collectively referred to as the “**Parties**” and individually as a “**Party**”.

WHEREAS

The Parties intend to engage in a business relationship which includes _____. In the course of such business relationship, it is anticipated that MoH&UP may disclose or deliver to _____ certain or some of its trade secrets, policies, technical and business information, pricing, financial analysis, customer names, customer list, customer data or any other confidential or proprietary information, for the purpose of _____ (hereinafter referred to as “**the Purpose**”).

NOW, THEREFORE, THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES HERE TO AS FOLLOWS:

1. **Confidential information:** For the purposes of this Agreement, "Confidential Information" means any and all information or data that is proprietary to the Disclosing Party and not generally known to the public, whether in tangible or intangible form, in whatever medium provided by the Disclosing Party to the Receiving Party or its representative(s) in connection with the Purpose and the business transacted/to be transacted between the Parties. Confidential Information shall include any copy, abstract, sample, notes or module thereof.

The Receiving Party shall use the Confidential Information solely for and in connection with the Purpose.

Notwithstanding the foregoing, "Confidential Information" shall not include any information which the Receiving Party can show: (a) is now or subsequently becomes legally and publicly available without breach of this Agreement by the Receiving Party, (b) was rightfully in the possession of the Receiving Party without any obligation of confidentiality prior to receiving it from the Disclosing Party and can be shown by documentary evidence in support thereof, (c) was rightfully obtained by the Receiving Party from a source other than the Disclosing Party without any obligation of confidentiality and can be shown by documentary evidence in support thereof, (d) was developed by or for the Receiving Party independently and without reference to any Confidential Information and such independent development can be shown by documentary evidence, or (e) is disclosed pursuant to an order of a court or governmental agency as so required by such order, provided that the Receiving Party shall endeavor to, unless prohibited by law or regulation, promptly notify the Disclosing Party of such order and afford the Disclosing Party the opportunity to seek appropriate protective order relating to such disclosure.

2. **Non-disclosure:** The Receiving Party shall not commercially use or disclose any Confidential Information to any other person or entity other than persons in the direct employment of the Receiving Party who have a need to have access to and knowledge of the Confidential Information solely for the Purpose authorized above. The Receiving Party may with prior written permission of the Disclosing Party, disclose the Confidential Information to its affiliates, consultants, advisors and such other persons who have a need to have access to and knowledge of the Confidential Information solely for the Purpose authorized above, subject to their entering into an agreement containing terms and

conditions no less restrictive than as set out in this Agreement. The Receiving Party agrees to notify the Disclosing Party immediately if it learns of any use or disclosure of the Disclosing Party's Confidential Information in violation of the terms of this Agreement. The Receiving Party undertakes to take full responsibility for the Confidential Information given to their Consultants, Advisors, Affiliates, and other persons referred in above and consequently any breach by such Consultants, Advisors Affiliates and other persons referred in above shall be treated as breach by the Receiving Party and accordingly will be liable to the Disclosing Party.

3. **Publications:** Neither Party shall make news releases, public announcements, give interviews, issue or publish advertisements or publicize in print or electronic media or any other manner whatsoever in connection with this Agreement, the contents/provisions thereof, other information relating to this Agreement, the Purpose, the Confidential Information or other matter of this Agreement, without the prior written approval of the other Party.
4. **Term:** This Agreement shall be effective from the date hereof and shall continue till the earlier to occur of (i) the expiration of 1 (one) year from the date of this Agreement unless renewed by both the parties in writing and (ii) till expiration or termination of this Agreement due to cessation of the business relationship between_____ & MoH&UP. However, the confidentiality obligations shall survive the termination of this Agreement. Upon expiration or termination as contemplated herein the Receiving Party shall immediately, cease any and all disclosures or uses of the Confidential Information and at the request of the Disclosing Party promptly return or destroy all written, graphic or other tangible forms of the Confidential information and all copies, abstracts, extracts, samples, notes or modules thereof. That portion of the Information which consists of analyses, compilations, studies or other documents or data prepared by the Receiving Party or its representatives, will continue to be held by the Receiving Party and will be treated as confidential.
5. **Title and Proprietary Rights:** Notwithstanding the disclosure of any Confidential Information by the Disclosing Party to the Receiving Party, the Disclosing Party shall retain title and all intellectual property and proprietary rights in the Confidential Information. No license under any trademark, patent or copyright, or application for same which are now or thereafter may be obtained by such Party is either granted or implied by the conveying of Confidential Information. The Receiving Party shall not conceal, alter, obliterate, mutilate, deface or otherwise interfere with any trademark, trademark notice, copyright notice, confidentiality notice or any notice of any other proprietary right of the Disclosing Party on any copy of the Confidential Information, and shall reproduce any such mark or notice on all copies of such Confidential Information. Likewise, the Receiving Party shall

not add or emboss its own or any other any mark, symbol or logo on such Confidential Information.

6. **Return of Confidential Information:** Upon written demand of the Disclosing Party, the Receiving Party shall (i) cease using the Confidential Information, (ii) return the Confidential Information and all copies, abstract, extracts, samples, notes or modules thereof to the Disclosing Party within seven (7) days after receipt of notice, and (iii) upon request of the Disclosing Party, certify in writing that the Receiving Party has complied with the obligations set forth in this agreement.
7. **Remedies:** Both parties acknowledge that the Confidential Information to be disclosed hereunder is of a unique and valuable character, and that the unauthorized dissemination of the Confidential Information would destroy or diminish the value of such information. The Receiving Party acknowledges that if the Receiving Party fails to comply with any of its obligations hereunder, the Disclosing Party may suffer immediate, irreparable harm for which monetary damages may not be adequate. The Receiving Party agrees that, in addition to all other remedies provided at law or in equity, the Disclosing Party shall be entitled to injunctive relief hereunder.
8. **Entire Agreement, Amendment, and Assignment:** This Agreement constitutes the entire agreement between the Parties relating to the matters discussed herein and supersedes any and all prior oral discussions and/or written correspondence or agreements between the Parties. This Agreement may be amended or modified only with the mutual written consent of the Parties. Neither this Agreement nor any right granted hereunder shall be assignable or otherwise transferable.
9. **Notices:** Any notice or other communication under this Agreement shall be in writing and shall be delivered personally, or sent by pre-paid first-class post or recorded delivery or by commercial courier or by electronic mail, to a party at its address as set out below: Disclosing Party: MoH&UP Sultanate of Oman.

Receiving Party: _____

or as otherwise specified by a party by notice in writing to the other party.

Any notice or other communication shall be deemed to have been duly received:

- i. if delivered personally, when left at the address and for the contact referred to in this clause; or
- ii. if sent by pre-paid first-class post or recorded delivery, at 11.00 am on the fourth business day after posting; or
- iii. if delivered by commercial courier, on the date and at the time that the

- courier's delivery receipt is signed; or
- iv. if sent by an electronic mail, on the day of receipt, if received before 11.00 a.m. on a business day, or otherwise on the first business day after receipt.

10. **Governing Law and Jurisdiction:** The provisions of this Agreement shall be governed by the laws of Oman and the parties submit to the jurisdiction of courts/tribunals at Muscat.

11. **General:** The Receiving Party shall not reverse-engineer, decompile, disassemble or otherwise interfere with any Confidential Information disclosed hereunder.

All Confidential Information is provided on "as is" basis. In no event shall the Disclosing Party be liable for the inaccuracy or incompleteness of the Confidential Information. None of the Confidential Information disclosed by the Parties constitutes any representation, warranty, assurance, guarantee or inducement by either Party to the other with respect to the fitness of such Confidential Information for any particular purpose or infringement of trademarks, patents, copyrights or any right of third persons. Each party agrees to maintain and go by all the extant laws, regulatory guidelines and such other similar regulations.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first above written.

Disclosing Party

Receiving Party

By_____

By_____

Name:

Name:

Title:

Title:

17. PRE-CONTRACT INTEGRITY PACT (IP Agreement)

General

This pre-bid pre-contract Agreement (hereinafter called the Integrity Pact) is made on ____ day of the _____ month of 2023, between, on one hand, the H.E. Dr. Khafan AlShuali, Minister MoH&UP (hereinafter called the "BUYER", which expression shall mean and include, unless the context otherwise requires, his successors in office and assigns) of the First Part and is represented by Mr. XXXXXXXX (hereinafter called the "Seller" which expression shall mean and include, unless the context otherwise requires, his successors and permitted assigns) of the Second Part.

WHEREAS the **BUYER** proposes to **Procure UNIFIED PORTAL** for MoH&UP Sultanate of Oman and the BIDDER/Seller is willing to offer/has offered the stores and

WHEREAS the **BIDDER(s)** is a private company/public company/Government undertaking/partnership/registered export agency, constituted in accordance with the relevant law in the matter and the BUYER is the Minister MoH&UP Sultanate of Oman.

NOW, THEREFORE,

To avoid all forms of corruption by following a system that is fair, transparent and free from any influence/prejudiced dealings prior to, during and subsequent to the currency of the contract to be entered into with a view to: -

Enabling the **BUYER** to obtain the desired said stores/equipment at a competitive price in conformity with the defined specifications by avoiding the high cost and the distortionary impact of corruption on public procurement, and

Enabling **BIDDER(s)** to abstain from bribing or indulging in any corrupt practice in order to secure the contract by providing assurance to them that their competitors will also abstain from bribing and other corrupt practices and the BUYER will commit to prevent corruption, in any form, by its officials by following transparent procedures.

The parties hereto hereby agree to enter into this Integrity Pact and agree as follows:

1. Commitments of the BUYER:

1.1 The BUYER undertakes that no official of the BUYER, connected directly or indirectly with the contract, will demand, take a promise for or accept, directly or through intermediaries, any bribe, consideration, gift, reward, favors or any material or immaterial benefit or any other advantage from the BIDDER, either for themselves or for any person, organization or third party related to the contract in exchange for an advantage in the bidding process, bid evaluation, contracting or implementation process related to the contract.

1.2 The BUYER will, during the pre-contract stage, treat all BIDDER(s) alike, and will provide to all BIDDER(s) the same information and will not provide any such information to any particular BIDDER which could afford an advantage to that particular BIDDER in comparison to other BIDDERS.

1.3 All the officials of the BUYER will report to the appropriate Government office to avoid any attempted or completed breaches of the above commitments as well as any substantial suspicion of such a breach.

2. In case any such preceding misconduct on the part of such official(s) is to be reported by the BIDDER to the BUYER with full and verifiable facts and the same is prima facie found to be correct by the BUYER, necessary disciplinary proceedings, or any other action as deemed fit, including criminal proceedings may be initiated by the BUYER and such a person shall be debarred from further dealings related to the contract process. In such a case while an enquiry is being conducted by the BUYER the proceedings under the contract would not be stalled.

3. Commitments of BIDDERS

The BIDDER commits himself to take all measures necessary to prevent corrupt practices, unfair means and illegal activities during any stage of its bid or during any pre-contract or post-contract stage in order to secure the contract or in furtherance to secure it and in particular commit himself to the following: -

- 3.1 The BIDDER will not offer, directly or through intermediaries, any bribe, gift, consideration, reward, favors, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the BUYER, connected directly or indirectly with the bidding process, or to any person, organization or third party related to the contract in exchange for any advantage in the bidding, evaluation, contracting and implementation of the contract.
- 3.2 The BIDDER further undertakes that they have not given, offered or promised to give, directly or indirectly any bribe, gift, consideration, reward, favor, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the BUYER or otherwise in procuring the Contract or forbearing to do or having done any act in relation to the obtaining or execution of the contract or any other contract with the Government for showing or forbearing to show favor or disfavor to any person in relation to the contract or any other contract with the Government
- 3.3 BIDDERS shall disclose the name and address of agents and the representatives and Omani BIDDERS shall disclose their foreign principals or associates.
- 3.4 BIDDERS shall disclose the payments to be made by them to agents/brokers or any other intermediary, in connection with this bid/contract.
- 3.5 The BIDDER, either while presenting the bid or during pre-contract negotiations or before signing the contract, shall disclose any payments he has made, is committed to or intends to make to officials of the BUYER or their family members, agents, brokers or any other intermediaries in connection with the contract and the details of services agreed upon for such payments.
- 3.6 The BIDDER will not collude with other parties interested in the contract to impair the transparency, fairness and progress of the bidding process, bid evaluation, contracting and implementation of the contract.
- 3.7 The BIDDER will not accept any advantage in exchange for any corrupt practice, unfair means and illegal activities.
- 3.8 BIDDER shall not use improperly, for purposes of competition or personal gain, or pass on to others, any information provided by the BUYER as part of the business relationship, regarding plans, technical proposals and business details, including information contained in any electronic data carrier. The BIDDER also undertakes to exercise due

and adequate care lest any such information is divulged.

3.9 The BIDDER commits to refrain from giving any complaint directly or through any other manner without supporting it with full and verifiable facts.

3.10 The BIDDER shall not instigate or cause to instigate any third party/ person to commit any of the actions mentioned above

3.11 If the BIDDER or any employee of the BIDDER or any person acting on behalf of the BIDDER, either directly or indirectly, is a relative of any of the officers of the BUYER, or alternatively, if any relative of an officer of the BUYER has financial interest/stake in the BIDDER's firm, the same shall be disclosed by the BIDDER at the time of filing of tender. The BIDDER shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any employee of the BUYER.

4. Previous Transgression

4.1 The BIDDER declares that no previous transgression occurred in the last three years immediately before signing of this Integrity Pact, with any other company in any country in respect of any corrupt practices envisaged hereunder or with any Public Sector Enterprise in Oman or any Government Department in Oman that could justify BIDDER's exclusion from the tender process.

4.2 The BIDDER agrees that if it makes incorrect statement on this subject, BIDDER can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reasons.

5. Earnest Money (Security Deposit)

5.1 While submitting commercial bid, the BIDDER shall deposit an amount as Earnest Money/Security Deposit, with the BUYER through any of the following instruments:

- (i) Demand Draft or a Cheque in favor of M/s. MoH&UP.
- (ii) A confirmed guarantee by an Omani MOHUP, promising payment of the guaranteed sum to the BUYER on demand within three working days without any demur whatsoever and without seeking any reasons whatsoever. The demand for payment by the BUYER shall be treated as conclusive proof of payment. No other mode or through any other instrument except mentioned here is accepted.

5.2 The Earnest Money/Security Deposit shall be valid up to a period of five years or the complete conclusion of the contractual obligations to the complete satisfaction of both the BIDDER and the BUYER, including warranty period, whichever is later.

5.3 In case of the successful BIDDER a clause would also be incorporated in the Article pertaining to Performance Bond in the Purchase Contract that the provisions of Sanctions for Violation shall be applicable for forfeiture of Performance Bond in case of a decision by the BUYER to forfeit the same without assigning any reason for imposing sanction for violation of this Pact.

5.4 No interest shall be payable by the BUYER to the BIDDER on Earnest Money/Security Deposit for the period of its currency.

6. Sanctions for Violations

6.1 Any breach of the aforesaid provisions by the BIDDER or any one employed by it or acting on its behalf (whether with or without the knowledge of the BIDDER) shall entitle the BUYER to take all or any one of the following actions, wherever required: -

- (i) To immediately call off the pre contract negotiations without assigning any reason or giving any compensation to the BIDDER. However, the proceedings with the other BIDDER(s) would continue.
- (ii) The Earnest Money Deposit (in pre-contract stage) and/or Security Deposit/Performance Bond (after the contract is signed) shall stand forfeited either fully or partially, as decided by the BUYER and the BUYER shall not be required to assign any reason therefore.
- (iii) To immediately cancel the contract, if already signed, without giving any compensation to the BIDDER.
- (iv) To recover all sums already paid by the BUYER, and in case of an Omani BIDDER with interest thereon at 2%. If any outstanding payment is due to the BIDDER from the BUYER in connection with any other contract for any other stores, such outstanding payment could also be utilized to recover the aforesaid sum and interest.
- (v) To encash the advance MOHUP guarantee and performance bond/warranty bond, if furnished by the BIDDER, in order to recover the payments; already made by the BUYER, along with interest.
- (vi) To cancel all or any other Contracts with the BIDDER. The BIDDER shall be liable to pay compensation for any loss or damage to the BUYER resulting from such cancellation/rescission and the BUYER shall be entitled to deduct the amount so payable from the money(s) due to the BIDDER.
- (vii) To recover all sums paid in violation of this Pact by BIDDER(s) to any middleman or agent or broker with a view to securing the contract.
- (viii) In cases where irrevocable Letters of Credit have been received in respect of any contract signed by the BUYER with the BIDDER, the same shall not be opened.
- (ix) Forfeiture of Performance Bond in case of a decision by the BUYER to forfeit the same without assigning any reason for imposing sanction for violation of this Pact.

6.2 The BUYER will be entitled to take all or any of the actions mentioned at para 6.1(i) to (ix) of this Pact also on the Commission by the BIDDER or any one employed by it or acting on its behalf (whether with or without the knowledge of the BIDDER).

6.3 The decision of the BUYER to the effect that a breach of the provisions of this Pact has been committed by the BIDDER shall be final and conclusive on the BIDDER.

7. Fall Clause

7.1 The BIDDER undertakes that it has not supplied/ is not supplying similar product/ systems or subsystems at a price lower than that offered in the present bid in respect of any other Ministry/Department of the Government of Oman and if it is found at any stage that similar product/ systems or sub systems was supplied by the BIDDER to any other Ministry/Department of the Government of Oman at a lower price, then that very price, with due allowance for elapsed time, will be applicable to the present case and the difference in the cost would be refunded by the BIDDER to the BUYER, if the contract has already been concluded.

8. Law and Place of Jurisdiction

This Pact is subject to Omani Law.

9. Other Legal Actions

The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant law in force relating to any civil or criminal proceedings.

10. Validity

- 10.1 The validity of this Integrity Pact shall be from date of its signing and extended up to 5 years or the complete execution of the contract to the satisfaction of both the BUYER and the BIDDER/Seller, including warranty period, whichever is later. In case BIDDER is unsuccessful, this Integrity Pact shall expire after six months from the date of the signing of the contract.
- 10.2 Should one or several provisions of this Pact turn out to be invalid; the remainder of this Pact shall remain valid. In this case, the parties will strive to come to an agreement to their original intentions.

The parties hereby sign this Integrity Pact at _____ on _____

BUYER

BIDDER

Mr./Ms.

Ministry of Housing and Urban Planning

Chief Executive Officer/ MD/ Director

Witness

Witness

1. _____

1. _____

2. _____

2. _____

- ❖ Provisions of these clauses would need to be amended/ deleted in line with the policy of the BUYER in regard to involvement of Omani agents of foreign suppliers.

(Note: Pls. Sign and stamp on all IP agreement page)

Annexure X

18. TIMELINE AND PAYMENT MILESTONES

Payment will be made on submission of invoices. The service provider will submit invoices at the end of the month. The MoH&UP will make the payment within 30 days subject to submission of invoices along with supporting documents / reports towards delivery of goods/services and completion of project milestones. Applicable liquidity damages will be deducted to arrive at the payable for the month.

Payments of following Cost will be made after completion of Milestone as defined in the table below:

Payment Milestones	Payment in % of Respective Cost Component		
	Hardware Cost (including 1 year warranty)	Software Cost (including 1 year warranty)	Implementation Services Cost
Advance Payment	10	10	10
Hardware/Software Delivery	60	60	
Successful roll-out of the solution at primary site (installation and operation) This would also include signing the User Acceptance Test (UAT) document, and Service Level Agreement (SLA)			40
Successful roll-out of the solution at backup site (installation and operation) This would also include signing the User Acceptance Test (UAT) document, and Service Level Agreement (SLA)			40
Retention Amount (will be released one month after completion)	30	30	10

Subject to final contract negotiations with the selected vendor/bidder.

19. Bid Commitment Declaration

Company Name:

P.O Box:

Postal Code:

Email:

By virtue of Tender Board Circular (/2024) regarding the exemption from submitting a bid bond in tenders

- 1- We, _____ hereby declare our commitment to our bid for the _____ tender during its validity period as specified in the tender documents.
- 2- We acknowledge the following:
 - a- It is the Tender Board / the concerned entity right to disqualify any bid that is lower by more than (20%)b twenty percent than the submitted bids and the estimated cost of the tender and proves its failure to comply with the tender terms and conditions and its inability to execute the contract according to Article (28) of the Tender Law.
 - b- The bidder will be banned from participating in entities subject to the Tender Law tenders for a period of one year if they withdraw their bid during its validity period.

Name of the Company Owner / Authorized to sign:

Signature:

Stamp: